

W900KK25RA003

Attachment 6

Family of Maintenance Trainers

Multiple Award Contract Indefinite Delivery /Indefinite Quantity (MAC ID/IQ) ORDERING PROCEDURES



Army Contracting Command Orlando (ACC-ORL)
Orlando, FL 32826

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Fair Opportunity Process

General: Multiple Award Contract (MAC) Indefinite Delivery /Indefinite Quantity (ID/IQ) holders shall evaluate an opportunity and determine whether or not to submit good faith Delivery Order (DO) Proposals (DOPs) on all requirements that arise under the FMT MAC. If a MAC ID/IQ holder intends to decline submitting a DOP, the Contractor shall notify the Government POCs listed in the Delivery Order Proposal Request (DOPR) within 5 business days of DOPR issuance. All "no proposal" responses shall include a brief statement as to why the contractor is unable/unwilling to perform.

The following instructions were developed and will be implemented in accordance with FAR 16.505:

1. The Fair Opportunity process is distinct from the source selection procedures and requirements described in FAR Part 15. Regulations and policies related to Part 15 **do not** inform or control the Fair Opportunity Process.
2. FAR 16.505(b)(1) allows flexibility in conducting fair opportunity competitions where it states: "[T]he contracting officer may exercise broad discretion in developing appropriate order placement procedures ...the competition requirements in Part 6 and the policies in Subpart 15.3 do not apply to the ordering process."
3. Prior to issuing a DOPR for all eligible DOs exceeding the micro purchase threshold, the Government shall conduct market research amongst the FMT ID/IQ MAC awardees.
4. Based on the results of market research, at the Government's discretion, orders issued against the Multiple Award Contract may be set-aside for the SB ID/IQ holders or any subcategory of small businesses whenever the "rule of two" or any alternative set-aside requirements provided in the small business program have been met. If no acceptable offerors are received under a SB set-aside, the DOPR will be withdrawn and if still valid, will be resubmitted to all FMT ID/IQ holders.
5. If a Small Business graduates from its Small Business status at the time of ID/IQ award, the contractor must notify the KO, and it will no longer be eligible to compete for Small Business set-asides
6. If two or more SBs are not identified as detailed above, the DO will be competitively awarded using the FAR 16.505(b)(1) Fair Opportunity Process.

7. Orders over SAT issued non-competitively will be supported by documentation as required by FAR 16.505(b)(2)(i).
8. For orders under the Simplified Acquisition Threshold, the Government need not contact each MAC ID/IQ holder if the Contracting Officer has access to sufficient information to ensure each eligible MAC ID/IQ holder is provided a fair opportunity for the order.

DOPR Package: For orders over the micro purchase threshold, the Government will typically provide the following to each MAC ID/IQ holder:

1. An email will usually contain the DOPR package, which may include the Cost/Price Template, selection criteria, the DOP due date, and any other instructions and information necessary for the Offeror's DOP. If the Contracting Officer provides an oral solicitation, it shall be followed up in writing.
2. A Statement of Work (SOW) or Statement of Objectives (SOO), a list of deliverables/CDRLs, a delivery schedule, applicable performance standards, and any other technical documentation necessary for DOP preparation will also be provided with the DOPR package.

Selection Process

1. Cost/Price Shall be considered in the issuance of each DO.
2. Offerors may be required to submit a Small Business Participation Plan which will be incorporated into the resulting DO.
3. The selection criteria will be tailored to each specific DO.
4. The Government is not obligated to have interchanges with Offerors prior to award.
5. The Government may choose to have interchanges regarding DOPs with any number of Offerors prior to award. It will be at the Government's discretion to engage with all or any number of Offerors that submitted a DOP in support of that DO.
6. The Government will select the awardee based on the DO selection criteria provided with the DORP.

7. Offerors may or may not be provided the opportunity to submit a final proposal revision. The decision will be at the discretion of the Government.

Miscellaneous Information

1. If a proposed effort results in a potential OCI, the contractor shall notify the KO and CS in writing as soon as the potential OCI is discovered.
2. The contractor shall assume all costs associated with preparation of proposals for DO awards as an indirect charge (bid and proposal costs)/ The Government will not reimburse awardees for proposals as a direct charge. In addition, unsuccessful offerors will not be reimbursed for proposal preparation costs.
3. It is the Government's intention to perform closeout procedures on an individual DO basis. The Contractor agrees to perform those internal functions necessary to support this process in a timely manner. DO closeouts will occur as soon as possible after DO completion.
4. The contractor is not authorized at any time to commence DO performance prior to issuance of a signed DO or other written approval provided by the KO to begin work.